

been completed approximately six months earlier. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

TROY ANDERSON vs. WARDEN OF CALIFORNIA MEDICAL FACILITY; ET AL.
Case No. CU23-02408

CUEVA's Demurrer

TENTATIVE RULING

Defendant D. CUEVA ("CUEVA," erroneously sued as WARDEN OF CALIFORNIA MEDICAL FACILITY) demurs to Plaintiff TROY ANDERSON's complaint for negligence and intentional tort.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. Plaintiff's complaint does not state a cause of action against CUEVA. The complaint states that Plaintiff brought some of his concerns to CUEVA on April 22, 2022 and CUEVA agreed with Plaintiff that Plaintiff having to wear a control jumpsuit during emergency medical transports was unreasonable; CUEVA then directed his subordinates to enforce his orders. The complaint also states that CUEVA would approve Plaintiff's phone calls to a legal help center but another defendant, B. EBERT, would interfere and delay or deny the calls. There is no cognizable action stated against CUEVA in these allegations.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.)

Plaintiff filed opposition to the demurrer on April 17, 2026. The opposition papers include a proposed amended complaint. However, the proposed amended complaint is substantially a restatement of the operative complaint and so does not demonstrate a reasonable possibility that amendment would cure the lack of a cognizable action against CUEVA in the operative complaint. Where the proposed amended complaint adds new material it adds only legal argument and allegations of general inequality in the prison system that do not implicate CUEVA specifically.

Conclusion. CUEVA's demurrer is sustained without leave to amend.

JAVON CHRISTINA ROSS vs. RONALD DEAN SCRIVNER; ET AL.
Case No. CU24-06538

Defendant's Motion for Sanctions for Spoliation of Evidence

TENTATIVE RULING

Defendant RONALD DEAN SCRIVNER moves for issue, evidentiary, and monetary sanctions against Plaintiff JAVON CHRISTINA ROSS. Defendant contends that Plaintiff intentionally underwent sacroiliac joint surgery shortly after Defendant served her with a demand for an independent medical examination and thereby deprived him of evidence of the condition of her sacroiliac joint following the motor vehicle collision underlying Plaintiff's complaint.

Code of Civil Procedure section 2023.030 permits a court to impose various sanctions on a party that misuses the discovery process. Spoliation of evidence is the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in future litigation. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) Spoliation is an abuse of the discovery process open to a wide range of sanctions, including monetary, evidentiary, issue, and terminating sanctions. (*Ibid.*) Egregious spoliation can warrant terminating sanctions even absent prior disobedience of court orders. (*Ibid.*) However, as these sanctions are meant to remedy misconduct rather than punish offenders, sanctions imposed must not place the requesting party in a better place than he would be had he obtained the spoiled evidence and should be proportionate to the offending party's misconduct. (*Ibid.*) A party moving for sanctions based on spoliation of evidence must make a prima facie showing that evidence was spoiled and the spoliation has a substantial probability of damaging the movant's ability to prove his claim or defense. (*Id.* at p. 1227.) The party accused of spoliation must then disprove prejudice to the movant. (*Ibid.*)

Defendant took Plaintiff's deposition on August 27, 2025 and at that time learned that Plaintiff had been recommended sacroiliac joint surgery. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 4, Exhibit A.) Plaintiff stated at the deposition that she had not scheduled a date for the surgery but had an appointment on August 28, 2025 at which scheduling would be arranged. (*Ibid.* [deposition transcript at 81:17-21, 108:7-